

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202204062	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 05/28/2022 10:54 PM	Location of Incident: Intersection of Myrtle Avenue and Washington Park in Brooklyn	18 Mo. SOL 11/28/2023	Precinct: 88		
Date/Time CV Reported Wed, 06/22/2022 1:34 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/22/2022 1:34 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Christopher Francis	10068	965108	PSA 3
2. LT Michael Demonda	00000	945659	AVIATION
3. PO Pascual Melo	06249	966218	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Delinda Giraldo	21529	953911	PSA 3
2. an officer			
3. PO Mohammad Abdelfattah	00603	965915	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A. PO Pascual Melo	Abuse: Police Officer Pascual Melo stopped the vehicle in which § 87(2)(b) was an occupant.	
B. PO Christopher Francis	Force: Police Officer Christopher Francis used physical force against § 87(2)(b)	
C. PO Christopher Francis	Force: Police Officer Christopher Francis used physical force against § 87(2)(b)	
D. LT Michael Demonda	Force: Lieutenant Michael Demonda hit § 87(2)(b) against the ground.	
E. LT Michael Demonda	Discourtesy: Lieutenant Michael Demonda spoke discourteously to § 87(2)(b)	
F. LT Michael Demonda	Off. Language: Lieutenant Michael Demonda spoke offensively regarding § 87(2)(b)'s actual or perceived disability.	
G. PO Pascual Melo	Abuse: Police Officer Pascual Melo searched § 87(2)(b)	
H. PO Pascual Melo	Abuse: Police Officer Pascual Melo searched the vehicle in which § 87(2)(b) was an occupant.	
I. PO Pascual Melo	Abuse: Police Officer Pascual Melo failed to provide § 87(2)(b) with a business card.	

Case Summary

On June 22, 2022, § 87(2)(b) filed this complaint via the CCRB Call Processing System.

On May 28, 2022, at 10:54 PM, in the vicinity of Myrtle Avenue and Washington Park in Brooklyn, § 87(2)(b) was walking to visit a friend in the area and encountered two individuals at a parked car. § 87(2)(b) approached and spoke to the individuals for several minutes before officers, including PO Christopher Francis, PO Delinda Giraldo, PO Pascual Melo and PO Michael Demonda, all of PSA 3, arrived at the location. PO Melo stopped the individual in the parked car (**Allegation A: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) attempted to leave the location and was stopped by PO Francis, who grabbed him and told him he was not free to leave (**Allegation B: Force**, § 87(2)(g)). As § 87(2)(b) was walking back to the parked car, PO Francis pushed § 87(2)(b) in the back before Lt. Demonda forcibly took § 87(2)(b) to the ground (**Allegations C and D**: § 87(2)(g)). While on the ground, Lt. Demonda told § 87(2)(b) that his behavior was “retarded” (**Allegation E: Discourtesy**, § 87(2)(g)); **Allegation F: Offensive Language**, § 87(2)(g)). § 87(2)(b) was then arrested and brought back to the stationhouse where he was charged § 87(2)(a) 160.50. While PO Francis and PO Giraldo transported § 87(2)(b) to the stationhouse, PO Melo stayed on scene and searched an individual as well as his vehicle (**Allegations G and H: Abuse of Authority**, § 87(2)(g)). PO Melo then ordered the individual to leave the location and did not offer him a business card (**Allegation I: Abuse of Authority**, § 87(2)(g)).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) provided cell phone footage of the incident. The videos are located in IAs #29 and 30 (**Board Review 16, 17**). BWC footage was obtained for Lt. Demonda, PO Abdelfattah, PO Francis, PO Giraldo, PO Melo, Detective Landi, Detective Perezcoyle, and Detective Lewis. The footage is located in IAs #101-105 and #35 (**Board Review 01-06**). The footage is summarized in IA #36 (**Board Review 07**).

Findings and Recommendations

Allegation B – Force: Police Officer Christopher Francis used force against § 87(2)(b)

Allegation C – Force: Police Officer Christopher Francis used force against § 87(2)(b)

Allegation D – Force: Lieutenant Michael Demonda used force against § 87(2)(b)

BWC footage from PO Francis shows, at 01:13 on the media player, PO Francis walks around the car and approaches § 87(2)(b) who is standing next to the open front passenger door. At 01:20, § 87(2)(b) tells PO Francis that he was not in the car and starts walking away. PO Francis tells § 87(2)(b) that he was standing next to the car and repeatedly tells him that he is not free to leave. PO Francis grabs § 87(2)(b)'s left forearm. § 87(2)(b) grabs PO Francis' arm and tries to pull it off him. § 87(2)(b) repeatedly asks why PO Francis is grabbing him. PO Francis tells him it is because he is not listening and is not free to leave. § 87(2)(b) asks PO Francis if he will let go of him if he walks back to the car, to which PO Francis says that he will. § 87(2)(b) agrees to walk back to the car. As he is doing so, PO Francis grabs the back of his hoodie, and pushes § 87(2)(b) forward. § 87(2)(b) turns around and a struggle ensues. Lt. Demonda wraps his arms around § 87(2)(b) from behind and takes him to the ground. § 87(2)(b) lands on his left side (**Board Review 03**).

PO Giraldo's BWC footage captures a separate angle of this interaction. At 01:53, § 87(2)(b) agrees to walk back to the car and begins to do so. PO Francis is behind § 87(2)(b) and his right

hand is holding the back of § 87(2)(b)'s hoodie. § 87(2)(b) swings his right arm up, and forward, seemingly to pull away from PO Francis. PO Francis then grabs the back of § 87(2)(b)'s hoodie again and shoves him forward. The footage shows Lt. Demonda takes § 87(2)(b) to the ground and that PO Francis is only holding onto § 87(2)(b)'s wrist when this occurs **(Board Review 04)**.

BWC from PO Abdelfattah shows, at 01:00, he approaches the driver side door of the vehicle. A clear plastic cup with yellow liquid can be seen in the center console **(Board Review 02)**.

§ 87(2)(b), § 87(2)(g) On May 28, 2022, at approximately 10:30 PM, § 87(2)(b) got off the subway at either Jay Street or Nevins Street in Brooklyn and was walking to work on Myrtle Avenue when he encountered three individuals whom he knew just west of the intersection of Washington Park near the entrance to the housing complex. § 87(2)(b) stopped to talk to the individuals. § 87(2)(b) denied that they handed anything and could not recall if they shook hands or hugged when they encountered each other. An SUV was parked approximately six to ten feet away from where § 87(2)(b) and the individuals were standing. The owner of the vehicle, whom § 87(2)(b) was acquainted with, was sitting in the passenger seat and had an unopened bottle of liquor. § 87(2)(b) denied that he or the other individuals on the sidewalk had been drinking alcohol at any point and denied that there were any other containers of alcohol at the location. To § 87(2)(b)'s knowledge, the vehicle was parked legally and was not committing any violation. § 87(2)(b) was at the location speaking to the individuals on the sidewalk for approximately five minutes. § 87(2)(b) denied getting in or out of the car at any point. § 87(2)(b) acknowledged that he probably approached the vehicle to greet the driver, but could not definitively recall doing so. § 87(2)(b) refused to provide the full names or contact information for the individuals at the location.

§ 87(2)(b) stated that after PO Francis grabbed his wrist and told him that he was not free to leave, he agreed to walk back to the car. As § 87(2)(b) was doing so, PO Francis used both arms to shove § 87(2)(b) [sic] in the back. § 87(2)(b) [sic], who was holding his phone and recording, turned around and told PO Francis not to push him. The two began arguing. § 87(2)(b) heard PO Giraldo shout not to fight. Multiple officers then grabbed § 87(2)(b) [sic] and took him to the ground, causing him to land on his chest and the left side of his chin. § 87(2)(b) could not specifically recall who grabbed him or where he was grabbed. § 87(2)(b) did not receive any injuries from the physical contact. Prior to officers grabbing him, § 87(2)(b) was not doing anything with his body aside from holding his phone to record and denied doing anything to threaten PO Francis or any other officers **(Board Review 08)**.

§ 87(2)(b), § 87(2)(g) PO Francis and PO Giraldo were on routine patrol of PSA 3, when PO Francis noticed a car that was idling in a no-standing zone at the incident location. The car was occupied by multiple individuals, one of whom was § 87(2)(b) who was sitting in the front passenger seat. There were also multiple individuals sitting in chairs outside the vehicle. The individuals both inside and outside the vehicle were drinking alcohol, including § 87(2)(b). When asked how he knew the beverages he saw were alcohol, PO Francis stated that the drinks were not in bags and were in "plain view," though he did not recall what the beverages looked like. When asked where the alcohol was in the car, PO Francis stated that the individuals were holding their beverages and actively drinking them. § 87(2)(b), § 87(2)(e)

§ 87(2)(b). PO Francis recognized the vehicle as he had observed it in the same spot on prior occasions. The location is known to the NYPD as a "shooting prone" location. A

shooting occurred a week prior to this incident. The location is also known for narcotics dealing. PO Francis had not received any complaints through 911 or 311 about the individuals at the location prior to the incident though he stated that at the last community meeting he attended, members complained that they did not feel safe walking by that specific area of the block.

PO Francis made these observations as he drove past the vehicle, which he did at least five times over the span of thirty minutes. During this time, the individuals inside the vehicle, including § 87(2)(b) entered and exited the vehicle multiple times. PO Francis believed that there were drug sales going on, based on the narcotics prone location and because he recognized one or two known drug users near the vehicle. However, PO Francis stated he did not observe anyone make any hand-to-hand exchanges or anyone lean into the vehicle or contact the vehicle. There was a different number of people outside the vehicle each time PO Francis passed by. After observing the vehicle for approximately 30 minutes, PO Francis decided to call for backup to initiate a stop. § 87(2)(e) The stop was based on the car idling for longer than five minutes and that it was parked in a no-standing zone. The stop was also initiated based on the public consumption of alcohol. Multiple other police vehicles arrived, totaling eight additional officers, including Lt. Demonda, his operator, as well as members of the public safety team.

Officers pulled up to the location and exited their vehicles. At this point, § 87(2)(b) was in the front seat, another individual was in the driver's seat, and there may have been an individual in the back seat. As soon as PO Francis exited his vehicle, § 87(2)(b) exited the front passenger seat and began backing away towards the NYCHA complex. Because PO Francis was immediately focused on § 87(2)(b) he was not aware of what was happening with the other individuals at the location. § 87(2)(b) immediately began walking away from the officers. As § 87(2)(b) was backing away, he bladed his body, was holding his phone with one hand, and had his other hand in his pocket, which led PO Francis to believe he was concealing a weapon. When asked for more detail, PO Francis stated that there appeared to be an object in § 87(2)(b)'s right front pants pocket. PO Francis did not know what the object was, nor could he describe its shape, but said that it was protruding out of his pocket while § 87(2)(b) was moving his hand around. PO Francis clarified that no part of the object was visible, and that it was dark, so even if it were visible, he would not be able to tell what it was. This, § 87(2)(b) § 87(2)(b), caused PO Francis to fear for his safety. § 87(2)(b) § 87(2)(b) § 87(2)(b)

PO Francis grabbed § 87(2)(b)'s arm by his sleeve as he had ignored multiple orders not to leave. During this time, § 87(2)(b) tried to pull away from PO Francis. PO Francis ordered § 87(2)(b) to walk back to the car, and he initially complied, but smacked PO Francis' arm as he was walking back. PO Francis denied shoving § 87(2)(b) in the back at any point and stated that after § 87(2)(b) smacked his arm, he shoved PO Francis' upper chest area. However, after reviewing his BWC footage, PO Francis acknowledged pushing him in the back in response to § 87(2)(b) smacking his arm. At this point, PO Francis deemed it necessary to handcuff § 87(2)(b) as he was behaving disorderly. As Francis attempted to handcuff § 87(2)(b) he both tensed and flailed his arms. PO Francis grabbed § 87(2)(b) by his arms and took him to the ground to handcuff him. Lt. Demonda and PO Giraldo also contacted § 87(2)(b) and assisted in taking him to the ground, though PO Francis did not know specifically where they made contact with § 87(2)(b). Once on the ground, PO Francis handcuffed § 87(2)(b) and conducted a search incident to lawful arrest. The unknown object in § 87(2)(b)'s pocket was revealed to be a "puffed up" bag of marijuana, the amount of which was below the legal limit. PO Francis did not recall any details about how it was packaged. **(Board Review 09).**

§ 87(2)(g) Lt. Demonda was on routine patrol with the neighborhood safety team when he received a call from PO Francis, who stated that there was an issue at the incident location, where he regularly receives complaints of drinking, loud music, and drug dealing. Lt. Demonda did not recall exactly what PO Francis communicated with him, but believed it was regarding individuals drinking in a vehicle or a noise problem. Prior to PO Francis' call, Lt. Demonda was not aware of any issues at the location on that specific evening, though he was aware of the numerous complaints the location regularly receives through 311. Lt. Demonda arrived at the location shortly after the call. PO Francis was still in his police vehicle and waiting for other officers to arrive before approaching the individuals. There was also a civilian vehicle parked at the location. Lt. Demonda's police vehicle was parked parallel to the civilian vehicle and slightly behind it. PO Francis' vehicle was behind Demonda's. From where he was, Lt. Demonda was unable to see if anyone was drinking alcohol inside the vehicle. The front passenger door was open and there was one individual sitting in the front passenger seat and two others standing outside the vehicle. There was music coming from the vehicle, though Lt. Demonda did not believe it was unreasonably loud. The officers exited their vehicles and approached the individuals. Lt. Demonda's plan was to speak with the individuals to get more information about what was going on. The individuals were not considered to be stopped when the officers approached them. From the corner of his eye, Lt. Demonda saw PO Francis approach § 87(2)(b) who had been standing outside the vehicle. Lt. Demonda did not recall whether any individual exited the vehicle when the officers were engaging with them. Lt. Demonda did not see anyone consuming alcohol but observed several plastic cups around and in the vehicle. However, he was not able to determine which of the individuals may have been consuming alcohol. Lt. Demonda did not observe the individuals engaged in any kind of infraction, was unsure whether the vehicle was parked legally and did not recall whether the car was idling.

Lt. Demonda did not see § 87(2)(b) inside the vehicle at any time during the incident. Lt. Demonda did not know why § 87(2)(b) was not free to leave and could only assume that it was in relation to PO Francis' observations. PO Francis grabbed § 87(2)(b)'s arm as he repeatedly told him he could not leave. § 87(2)(b) began arguing with PO Francis but was not doing anything to physically resist PO Francis while he was holding his arm. § 87(2)(b) began walking back to the vehicle and while he was doing so, Lt. Demonda, who was walking behind PO Francis, observed PO Francis' head, neck and shoulders move backwards, which led him to believe that § 87(2)(b) had hit, or had tried to hit PO Francis. In response to this, Lt. Demonda grabbed § 87(2)(b) by his chest or shoulder area and pulled him away from PO Francis. Lt. Demonda and § 87(2)(b) then fell into the street. Lt. Demonda was the only officer contacting § 87(2)(b) when they fell to the ground (**Board Review 10**).

NYPD Patrol Guide 221-01 states that officer may use force when it is reasonable to ensure the safety of a member of service or a third person or when it is reasonable to place a person in custody or prevent escape from custody. Any use of force must be reasonable under the circumstances (**Board Review 11**).

PO Francis stated that he observed § 87(2)(b) drinking in the front passenger seat of the vehicle and was stopped for having an open container. § 87(2)(b) denied consuming any alcohol at the location and denied ever being in the vehicle. Lt. Demonda, who stated his police vehicle was closer to the civilian vehicle than PO Francis', stated that he did not recall § 87(2)(b) being in the vehicle and did not know what, if any, violation § 87(2)(b) may have committed. BWC footage shows that § 87(2)(b) is outside of the vehicle when officers approach him and does not show him holding any alcoholic beverage, nor does there appear to be any on the ground where he is standing. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

BWC footage shows that PO Francis is still holding onto § 87(2)(b)'s right arm once he begins walking back to the parked car. § 87(2)(b) seems to pull away from PO Francis. PO Francis stated that § 87(2)(b) smacked his arm when he did this and acknowledged pushing him in the back in response. § 87(2)(b), § 87(2)(g)

Following PO Francis' push, § 87(2)(b) turned around and began fighting with PO Francis, who was attempting to handcuff him. § 87(2)(b), § 87(2)(g)

Allegation E: Lieutenant Michael Demonda spoke discourteously to § 87(2)(b)

Allegation F: Lieutenant Michael Demonda spoke offensively regarding § 87(2)(b)'s actual or perceived disability.

Lt. Demonda's remark was captured on BWC footage and not alleged by § 87(2)(b)

BWC footage from PO Francis shows, at 02:24 on the media player, while § 87(2)(b) is being handcuffed on the ground, an officer says to § 87(2)(b) "Why'd you do that? That's retarded."

Lt. Demonda acknowledged saying, "That's retarded," to § 87(2)(b) while they were on the ground. Lt. Demonda made the remark because he believed the situation was unnecessary and did not understand § 87(2)(b)'s behavior. Lt. Demonda denied that he ever called § 87(2)(b) "retarded" (**Board Review 10**).

According to the decision rendered in Deputy Commissioner of Trials case number 2018-18951, officers have a responsibility to act with decorum when interacting with civilians (**Board Review 12**). Officers must interact with members of the public in a professional manner Administrative Guide Procedure 304-11 (**Board Review 13**).

§ 87(2)(b), § 87(2)(g)

Allegation A – Police Officer Pascual Melo stopped a vehicle in which an individual was an occupant.

Allegation G – Abuse of Authority: Police Officer Pascual Melo searched an individual.

Allegation H – Abuse of Authority: Police Officer Pascual Melo searched the vehicle in which an individual was an occupant.

Allegation I – Abuse of Authority: Police Officer Pascual Melo failed to provide an individual with a business card.

These allegations were captured on BWC and not alleged by § 87(2)(b)

BWC from PO Melo shows, beginning at 3:20 on the media player, while officers are dealing with § 87(2)(b) PO Melo asks the individual in the vehicle, “What is in the bag in the front seat?” The individual’s answer is unintelligible. PO Melo says, “Would you mind showing me?” The individual responds, “Yes” and shows PO Melo the contents of the bag. It is unclear what the contents are. PO Melo then states, “would you mind opening the glove box?” and the individual complies. PO Melo then states, “I know you're drinking. The cup is right there, and the car was idling.” PO Melo then tells the individual he’s going to let him leave and orders him to move his car (**Board Review 05**).

Statements from PO Francis and Lt. Demonda § 87(2)(g) Neither officer was aware of any interaction between PO Melo and the individual in the vehicle (**Board Review 09, 10**).

§ 87(2)(b) declined to provide names or contact information for the individual. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one additional CCRB complaint and five additional allegations, § 87(2)(b)
- PO Francis has been a member-of-service for five years and has been named as a subject in 20 additional CCRB complaints and 76 additional allegations, none of which have been substantiated. § 87(2)(g)
- Lt. Demonda has been a member-of-service for 15 years and has been named as a subject in 12 additional CCRB complaints and 24 additional allegations, four of which have been substantiated:
 - #201206619 involved a substantiated allegation of force. He was found guilty and the NYPD imposed the forfeiture of five vacation days.
 - #201207229 involved a substantiated allegation of a stop. He was found guilty and the NYPD imposed the forfeiture of five vacation days.
 - #201702223 involved a substantiated allegations of a stop and a frisk. The Board recommended command discipline A, which the NYPD imposed.
- PO Melo has been a member-of-service for four years and has been named as a subject in seven additional CCRB complaints and 25 additional allegations, one of which has been substantiated:
 - #202103607 involved a substantiated allegation of a discourtesy. The Board recommended command discipline A. The NYPD did not impose any penalty.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- On May 22, 2023, a notice of claim inquiry was submitted to the NYC Office of the Comptroller. The results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 8

Investigator:	<u>Trevor Hackett</u>	<u>Inv. Hackett</u>	<u>06/29/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>06/29/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date